

The Claremont City Council held a meeting on Wednesday, February 28, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:41 p.m. Council was in a non-meeting with legal counsel which delayed the start of this meeting.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Nicholas Koloski

Absent:

At-Large Councilor Abigail Kier
Ward II Councilor Scott Pope

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett requested to move Resolution 2018-26 up before Old Business. Council concurred.

MAYOR'S NOTES

Mayor Lovett said a ribbon cutting will be held Friday, 12:30 p.m., at Chartreuse Hair Salon, on Opera House Square.

Mayor Lovett said she had received comments regarding the change in classification to Half Mile Road, but that item has been removed from the agenda. Mr. McNutt said the City is no longer seeking to close Half Mile Road.

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to take off the table, Motion to Change Classification of a Portion of Half Mile Road from Class V to Class VI.

Voice vote: motion carried 7-0.

A motion was made by Mr. Damren and seconded by Mr. Stone to formally withdraw Motion to Change Classification of a Portion of Half Mile Road from Class V to Class VI.

Voice vote: motion carried 6-1, with Mr. Koloski voting no.

Mayor Lovett talked about the impending closure of Hope for Recovery and that local groups are working hard to ensure services continue to be delivered to residents.

Mayor Lovett said to celebrate Black History Month, *Raisin in the Sun* was shown Sunday at the Claremont Opera House.

Mayor Lovett said HB1485, increases the maximum allowable amount for a security deposit paid to a landlord to two months' rent, was killed in Judiciary Committee. They expect to have a House floor fight and she requested that if the City Manager has any thoughts he may have on why it's not good from a municipal standpoint to share them.

Mayor Lovett said March 13 is the date to vote for the school budget. You can register to vote at the City Clerk's office up to Saturday, 11:00-11:30 a.m. or you can register to vote at the polls.

Mr. McNutt announced Claremont Green Dot spotlight week will be March 19-24. Visit participants, get a passport, fill it with stamps and on March 24th turn it in to Java Cup to be included in a drawing for \$250, \$100, or \$50 prizes. The Green Dot initiative is to prevent acts of violence.

CITIZEN'S FORUM

Donald Clarke, Ward 1, gave a brief history of the quest to build a boat access in Newbury, NH, on Lake Sunapee, commonly known as Wild Goose. Mayor Lovett has been supportive of this. This has been going on for 27 years. He said a commission was formed by the Governor to find an alternative site. He received a copy of their report just before this meeting, but has not had time to review it. HB1706, fund construction of the site, was voted Inexpedient to Legislate, 19-2. He believes the report will ask that the Fish & Game Department dispose of that site and start looking for a new site. Mr. Clarke will come back to the Council to give a more in-depth report.

Tom Hubert, Resident of Newport, longtime business owner in Claremont and President of the Sullivan County Sportsmen's Club said the Club supports hunting, fishing, trapping in NH. They host events for children such as a fishing derby. They provide scholarships to college students studying outdoor conservation. He thanked Mayor Lovett for her efforts for public access to Lake Sunapee. He offered her a complimentary family membership to their club.

Mayor Lovett said the Council reaffirmed its commitment to Wild Goose by signing a resolution last year. In addition to the resolution signed by Claremont, Newport signed a resolution in support. She said a 1992 law states that every public body of water 10 acres or more has to have public access. People have tried to put in a boat at the launches at Georges Mills and Sunapee,

but the parking is not adequate. Rep. Hansen will submit HB1706 to the full House. No one is aware of a better location for access.

Steve Raymond, Ward 1, said he is pleased to see the Council working with the School Board. He's hoping the Council can help the School Board figure out how to get a building to get the rest of the kids back in Claremont.

Mark Brislin, Parks and Recreation Director, said the Claremont Savings Bank Community Center (CSBCC) is hosting 5 Days for 5 Years to celebrate its 5-year anniversary. It started Monday and there will be a whole week of free activities. It has been very successful. There will be a membership drawing for personal training sessions, massage, gift certificate to the Claremont Country Club, day passes, and the grand prize will be a hybrid outdoor fitness bike. People have until Friday, 4:55 p.m. to register.

Resolution 2018-26 NH Charitable Foundation Grant – Farmers Market – Public Hearing

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont has applied for (in conjunction with Vital Communities) and been awarded a Grant from the Thomas W. Haas Fund of the New Hampshire Charitable Foundation in the amount of \$8,000.00 to support the new Farmers and Artisans Market startup; and

WHEREAS the City would like to accept and expend the grant funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept the Grant in the amount of \$8,000.00 from the New Hampshire Charitable Foundation; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$8,000.00 for the Parks Department (from off-setting grant revenue); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2018-26 NH Charitable Foundation Grant – Farmers Market.

Mr. Damren read the resolution into the record.

Mr. McNutt said this grant does not have a City match.

Mr. Brislin said that the Parks and Recreation Department and the Parks and Recreation Commission has been working with Vital Communities regarding modeling this Farmers Market after the one in Lebanon. This grant will help with marketing. A market manager has not been hired yet.

Mr. Brislin said he will be going out for surgery next Thursday and he'll be out four to six weeks. He recommended putting the market on hold for this year. He has contacted Vital Communities regarding accepting the grant and putting the money into a restricted fund. They are contacting the NH Charitable Trust, but haven't heard back yet. He requested approving the resolution contingent on being able to hold the money for a year.

Mr. Brislin said a meeting was held and previous Farmers Market board members were invited. Attendees were pleased with the proposed direction and model. There has been some turnover of that board. He met with the former chair of that board and talked about the vision moving forward and they were in favor of Parks and Recreation following the Lebanon model.

Mayor Lovett asked what their opinion would be of no Farmers Market this year. Mr. Brislin said this would be separate and not run by the Farmers Market board. He hasn't spoken to them yet.

Mr. Damren asked if Mr. Brislin were not going in for surgery, who would be in charge of the Farmers Market. Mr. Brislin said it would be a part-time seasonal manager who would report to the Parks and Recreation Director.

Mr. McNutt said the existing Farmers Market that is on Thursdays in Broad Street Park was not going to be able to sustain itself nor is there a desire to continue it. So, there was a discussion about what other communities are doing. Mr. Brislin said Lebanon has one part-time staff that is part of their Parks and Recreation Department. Mr. McNutt said the intent is that Claremont would have the market on a more conducive date (Saturday), at a more conducive location (Visitors Center Green) and have a dedicated person be the market manager. He said that would attract more vendors. This opportunity came about because the existing market members have decided not to do it anymore.

Mr. Brislin said they have started the process to be able to accept EBT (Electronic Benefits Transfer) cards.

Mr. Brislin said a Parks and Recreation Commission meeting was held with the current Farmers Market people and he has spoken to some people individually to get input for this new market.

Mr. Brislin said he has not contacted the current market people to see if they would be interested in doing the market again this year. He wanted to come to Council first. He will call them tomorrow.

A motion was made by Mr. Damren and seconded by Mr. Koloski to amend the motion and add subject to approval from the NH Charitable Foundation giving the City of Claremont permission to accept the grant and defer spending the grant until 2019.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote on the amendment:

Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Zullo - yes
Koloski - yes
Lovett – yes
Motion carried 7-0.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2018-26 NH Charitable Foundation Grant – Farmers Market subject to approval from the NH Charitable Foundation giving the City of Claremont permission to accept the grant and defer spending the grant until 2019.

Roll call vote on the amended motion:

Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Zullo - yes
Koloski - yes
Lovett – yes
Motion carried 7-0.

OLD BUSINESS

Resolution 2018-22 Capital Reserve from Sale of City-Owned Property – Public Hearing

WHEREAS, the city wishes to effectively manage code enforcement within the city; and

WHEREAS, the sale of city owned property is an unanticipated revenue for the City resulting in unanticipated revenue that would drop into fund balance; and

WHEREAS, implementation of this plan will result in funding the enforcement and/or costs related to legal action required;

NOW THEREFORE BE IT RESOLVED that, pursuant to RSA 34:1-a, the City of Claremont hereby establishes a reserve fund to be known as the Non-Capital Reserve Fund for Code

Enforcement for the enforcement and/or legal action required to enforce codes within the City of Claremont; and

BE IT FURTHER RESOLVED that the City Manager or his designees will cause the proceeds of any monies received from the sale of city owned land and/or land with improvements to be deposited into said expendable reserve fund for the purpose of enforcing codes within the City of Claremont and named as agents to expend said funds.

Mayor Lovett said this resolution was sent to the Finance Committee which consists of Mr. Damren, Mr. Zullo and herself.

Mr. Damren said the Finance Committee had asked some questions, but hadn't received answers yet, so it would be appropriate to move this to another meeting.

Mayor Lovett said the Finance Committee will meet before the next Council meeting, so they will have more information then. She said this will be addressed at the next Council meeting.

NEW BUSINESS

Resolution 2018-24 Authorizing City to Accept and Expend Funds from Capital Regional Development Council (CRDC) Brownfields Grant – Public Hearing

WHEREAS the City of Claremont has received notice that the City has been awarded a Brownfield Program Sub-Grant (the "Grant") from Capital Regional Development Council (the "Grantor") in the amount of \$70,000.00 for engineering services and environmental remediation at 56 Opera House Square; and

WHEREAS the City would like to expend these grant funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED THAT the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept and expend the specified grant and to implement the funded project in an amount not to exceed \$70,000.00.

A motion was made by Mr. Koloski and seconded by Mr. Damren to adopt Resolution 2018-24 Authorizing City to Accept and Expend Funds from Capital Regional Development Council (CRDC) Brownfields Grant.

Mr. Koloski read the resolution into the record.

Mr. McNutt said this is to take the lead and asbestos out of 56 Opera House Square.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes
O’Hearne - yes
Stone - yes
Damren - yes
Zullo - yes
Koloski - yes
Lovett – yes
Motion carried 7-0.

Master Plan Acceptance

Mr. McNutt said the Master Plan was written with input from the community. The Planning Board has adopted the Plan. This is a request for the Council to adopt the Master Plan. It will last about 8-10 years.

Mr. Koloski said the Master Plan Committee did a tremendous job. This is an awesome Master Plan that has changed drastically from previous ones.

Mayor Lovett noted there are two new chapters, the Energy Chapter (Council recently authorized the energy committee) and the Public Health Chapter. She said the Council Goals & Objectives for 2018 will refer to the Master Plan.

Council concurred to accept the Master Plan.

Resolution 2018-25 NHDES Grant to Install Gate and Fencing at Rice Reservoir – Public Hearing

WHEREAS by a motion of the City Council on November 8, 2017, the City Manager or his designee was granted permission to undertake all actions and execute all documents required to prepare and submit a \$9,000.00 Local Water Source Protection Grant to the New Hampshire Department of Environmental Services (NHDES) to improve the security of its water supply infrastructure and protect the health and safety of the public; and

WHEREAS the City has now been awarded this grant in the amount of \$8,000.00 and now desires authorization to accept and expend the \$8,000.00 grant funds; and

NOW THEREFORE BE IT RESOLVED THAT the City Council hereby authorizes the City Manager, or his designee, to take such actions as may be necessary to accept the grant of \$8,000.00 and thus, enter into an agreement with the New Hampshire Department of Environmental Services for the purpose of installing a gate and security fencing at the Rice Reservoir; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$8,000.00 from Account # 90-490-580-0000, Water Department from off-setting grant revenue (to have no impact on the water rate); and

BE IT FURTHER RESOLVED that the City Manager or his designee is hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution

Scott Sweet, Public Works Director, said a new spillway was put in at Rice Reservoir and this would go toward protecting that area.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2018-25 NHDES Grant to Install Gate and Fencing at Rice Reservoir.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Koloski - yes

Lovett – yes

Motion carried 7-0.

Assessment Overview

Mayor Lovett said she has been ill since last Thursday, so she requested to move this to the next meeting. Council agreed.

Finalize City Council Goals and Objectives for 2018

Mayor Lovett said this is the document that will give guidance to the City Manager about where to focus his time and energy. There is too much to do in one year, so Council needs to be strategic in its efforts.

Mr. Koloski said all the items should remain and that it would be nice to have an update on what has been accomplished on each of them. Mayor Lovett said a progress report can be gotten.

Mayor Lovett asked for Council concurrence on the areas Councilors want the City Manager to focus on. She would like to see changes in Employee Development. It is no longer applicable as a City Manager has been hired. She said that she and Mr. Pope would like to know if Council can make it a Council priority to do an after-action report on the hiring of a new City Manager

process. Usually they have the Mayor do the leg work. The Council Action/Directive would be to capture that process, what worked/didn't work and get the City Manager's input.

Mr. Damren agreed to a summary of the City Manager hiring process. He would like to identify a better delegation of duties so they don't all fall on one person.

Mayor Lovett summarized that under Employee Development to remove both:

- A. Provide comprehensive overview to incoming city manager to ensure smooth transition

Council Actions/Directives:

- A. *Review job description and update as necessary*

and put under *Council Actions/Directives: Summary document of City Manager search process*

Mayor Lovett said to add in the block letters: City Manager will provide input into the summary document of the City Manager search process

Mayor Lovett said under Fiscal Responsibility, Item 2- Continue to collaborate with SAU #6, Granite State College and River Valley Community College as effective economic development and workforce development partners, needs to be modified. She asked what the status is of Granite State College (GSC). Mr. McNutt said he believes they are leaving their space. He'll check as they may return or may not leave and may incorporate further with RVCC (River Valley Community College). He believes it is important to leave this as is.

Mayor Lovett talked about a health committee or a board of health being added under Public Health, Safety and Welfare. She talked about having an organization that would have a better global grasp of the public health in the community.

Mr. McNutt said both Steve Coombs and Sean Glasscock are now the health officers. He said he can invite Mr. Coombs in to give an overview of their duties, which are dictated by state law. The City has staff that enforces state mandates. We also have the Healthy Vibrant Claremont group and he wondered if what they do can be incorporated into the City.

Mayor Lovett pointed out the City does not have a Board of Health that is listed in Municode and she said that makes it much harder to address health concerns.

Mr. Damren asked about reviewing what is in Municode.

Mayor Lovett said a Council Action would be to review Municode with regard to the Board of Health and review the public health chapter of the Master Plan to start building the organization that would be the most effective for the community. She said Mr. McNutt's action would be to map out the organization on the operational side and present it to the Council.

Mayor Lovett said under Future Agenda Items and Directives, she would like to discuss better communication with boards, commissions and committees. She said that should be its own Council action for Governance.

Mr. Koloski said a goal should be (maybe under Item 2 A. Workforce Development) to incentivize and market for workforce housing to be developed, i.e. lobbying in Concord, seeking grants, or constantly communicating with the USDA. He said employers are looking for housing.

Mayor Lovett said it is part of economic development and to put it under Fiscal Responsibility Item 1- Continue establishing clear operating procedures regarding economic development which will position the City to expand its tax base, recapture lost valuation, raise the median household income, and attract a talented workforce. Add item G Focus on workforce housing development.

Mr. Koloski said that one should be a top priority.

Mr. McNutt said everything that was just said is accurate. He and the department heads that are part of the economic development team want to better explain to the Council what are the City's goals for the next two to three years. He is working on an economic development plan to be presented to the Council in March or April. It will reference back to the Master Plan. It will touch on the revitalization of Pleasant Street (downtown); it will touch on working toward the creation of housing units in the upper floors of the buildings in the downtown; it will touch on creation of housing units in different areas of the City that would be conducive to housing development; it will talk about housing development opportunities that we are working with in concert with Valley Regional Hospital. It will talk about tax base and what are our opportunities throughout the City to expand our residential, commercial and industrial tax base. It will also talk about how to attract more people to Claremont.

Mr. McNutt said Charlestown Road is one of the City's prime areas for tax base development. It has an infrastructure limitation.

Mr. Koloski asked if there should be language in the Goals and Objectives that they have been developed in accordance with the Master Plan. Mayor Lovett said she can work on that.

Mr. Stone said that downtown parking is vital to success in that area.

Mr. McNutt said the City is looking to create approximately 100-120 additional spaces in the downtown.

Mayor Lovett referenced F. Engage a Joint Task Force of stakeholders to revitalize the downtown area.

Mr. McNutt said the City is meeting with the stakeholders of the downtown. He agreed with Mr. Stone that parking can make or break a future development. He used the example of the Planning Board allowing one parking space per dwelling unit instead of one and a half.

Mayor Lovett asked to add to F. Engage a Joint Task Force of stakeholders to revitalize the downtown area and to resolve the shortage of parking. Mr. McNutt agreed.

Mayor Lovett said the additions will be the Board of Health and reviewing Municode and coming up with a recommendation for the best organization possible to have the most effective outcomes for the community; Council Governance – focus on communications between the various entities and the Council as well as training opportunities.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt the Council Goals and Objectives for 2018 as amended.

Voice vote: motion carried 7-0.

Mayor Lovett said this information will be used to evaluate the City Manager.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett talked about the letter she drafted asking the boards, commissions and committees to make reports to the Council about their activities. She suggested giving the boards a courtesy copy of the 2018 Council Goals & Objectives when they are ready. Councilors concurred.

Mr. McNutt read off items that are on the draft 3/14 agenda.

Mayor Lovett said to add the Assessment Overview and Resolution 2018-22 Capital Reserve from Sale of City-Owned Property.

Mr. McNutt will put the economic development plan on the end of the month agenda.

Mayor Lovett talked about the community-wide spring cleanup and asked Mr. McNutt to talk about how the City can support it. She suggested Ward Councilors take the lead of their Wards. She's looking for two dates (one will be a rain date). She wants to engage residents and have an action plan for cleaning up hotspots. She asked about Public Works supplying gloves, bags and dumpsters.

Mr. McNutt said it would be most helpful to him to coordinate with the Ward Councilors about when to get the dumpsters dropped off.

Mayor Lovett said April 22 is Earth Day. She would like the cleanup discussion to be on the next agenda and to have Councilors bring ideas on how to create an action plan.

Mr. McNutt talked about t-shirts with sponsor names and giving them out to the volunteers. He would have to investigate the cost.

Mayor Lovett said it would be a good time to observe and report if street signs need to be replaced.

Mr. Koloski asked about At-Large Councilors. Mayor Lovett said some Wards may have more hotspots than others and At-Large Councilors may help there.

Mr. Koloski would like to keep the Conservation Commission informed. There is some conserved land that the City is responsible for.

Mayor Lovett talked about doing public outreach. Mr. McNutt will come back to the Council with ideas (i.e. how we undertake code enforcement and what are people's rights).

Mr. McNutt suggested once a quarter, in a public venue, having speakers talk about legal aid, tenants' right, City initiatives, other cities can talk about what they do, etc. He would invite CCTV (Claremont Community Television) to televise it.

Mayor Lovett asked Mr. McNutt to outline a plan for educational outreach and to put it in his March City Manager's Report.

Mr. Koloski asked about putting historic displays in the area outside Central Collections. Mr. McNutt had concerns about that.

Mr. Koloski asked about the status of the Personnel Advisory Board. Mayor Lovett said the vacancy is a Council appointment. Mr. Koloski asked all Councilors to seek out applicants.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:55 p.m., a motion was made by Mr. Damren and seconded by Mr. O'Hearne to adjourn.

Voice vote: motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council